



File No.: EXP202408193

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on May 24, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Access against B.B.B. (hereinafter, the respondent) without receiving the legally established response to their request.

The complainant states that on March 26, 2024, they contacted B.B.B., the respondent and owner of ***ESTABLISHMENT.1, via WhatsApp, where the complainant worked.

In that message, the complainant attached a PDF document in which they exercised the rights recognized by the current regulations on the protection of personal data, specifically the right of access and deletion of personal data concerning them. The respondent replied that same day, also via a WhatsApp message, stating that their data would be completely deleted from the application. The complainant finally indicates that, to date, they have not received explicit confirmation that their request has been addressed.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on August 24, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days they could present the arguments they deemed appropriate, summarizing the following arguments:

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"Through the WhatsApp application, the complainant sent me a document created on a computer, unsigned, and dated 26/03/2024, in which they request, as a former employee of the pizzeria, to exercise their rights of access, rectification, opposition, and deletion of their personal data, expressly requesting 'the deletion of their personal data without undue delay.'

In response to the request, I sent a handwritten and signed letter by the same means, certifying that the data of A.A.A., who is no longer an employee of the company, has been processed for mandatory procedures between employer and employee, and has never been used for any other purpose. That is, the data necessary for processing social security and for payroll preparation.

And in response to the request, the data has been completely deleted from the PIZZAGEST application, used for the management of registration and time control of the workers of the pizzeria. To certify compliance with the deletion of the complainant's data as requested, and its confirmation by letter dated 10/06/2024, I attach to this letter of allegations eleven documents consisting of screenshots of the WhatsApp exchanges between A.A.A. and myself, as well as the letter of confirmation of data deletion signed by me that was sent to the complainant."

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, they may formulate the allegations they deem appropriate, summarizing the following allegations:

The respondent has not fully and satisfactorily complied with my request for access and cancellation of personal data, thus violating my rights recognized by European regulations (General Data Protection Regulation, GDPR) and Spanish law (Organic Law on the Protection of Data and Guarantee of Digital Rights, LOPDGDD).

I request that the Spanish Agency for the Protection of Data (AEPD) take into account what is stated here and order the respondent to provide the requested documents, images, and recordings, as well as the complete deletion of my personal data from social networks and other public means.

Furthermore, I request that the agency ensure compliance with the remaining situations regarding which I may not have knowledge, where the regulations must also be applied. Finally, I emphasize that preventing my access to documents that substantiate my workplace accident is an obstruction to my ability to fully document the case of the workplace accident, omission of leave by the mutual insurance company, and dismissal after obtaining leave for common contingencies despite being informed. The recordings, if they exist, would also be useful for various reasons, such as images of my work performance the day after the accident by

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recommendation of the labor mutual. This may have been the reason for the worsening of my physical condition the following day, as my primary care physician noted.”

FIFTH: After examining the document submitted by the claimant, it is forwarded to the respondent, so that, within ten business days, they may formulate the allegations they deem appropriate, summarizing, in essence, the following allegations:

“I request the dismissal of the claim from A.A.A., as I have proven to have fulfilled my duty to respond to the request made by your party, providing explicit certification that your personal data is not being processed, and has never been used for any purpose other than that derived from the strict compliance with social security and tax obligations as it pertains to employer-employee relations, as well as having demonstrated through a signed document sent on 10/06/2024, that your existing data in the PIZZAGEST application, which is used in my business for the registration and control of workers' hours, has been deleted, as expressly requested by the claimant.

Regarding the delivery of the documents requested, specifically payslips, they have been provided on several occasions, and the rest of the requests made are directed towards a labor-social claim and not a data protection claim; however, there are no recordings or communications with the Labor Mutual, nor is your image used in any publication on the social network Instagram.”

SIXTH: After examining the document submitted by the respondent, it is forwarded to the claimant, so that, within ten business days, they may formulate the allegations they deem appropriate, without formulating allegations within the established timeframe.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

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Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by an interested party and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the claim for the exercise of rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, it was forwarded to the respondent for analysis, to respond to this Agency within one month and to prove that they had provided the claimant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on August 24, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the claim submitted was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their claim accepted.”

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the interested party under this Regulation.”

III

Rights of Individuals in Relation to Personal Data Protection

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The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated. The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the

data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than that offered which incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing.

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that is being made of your data, the possibility of obtaining a copy of the personal data concerning you and that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Conclusion

We will begin by stating that this claim will only take into account whether the requested rights, rights of access and deletion, have been addressed or not by the data controller. The right to deletion was addressed on the same day as the request submitted by the claimant, in which the responding party states and also through a WhatsApp message, "that they would proceed to the complete deletion of their data in the application." The rest of the issues raised by the parties, their discrepancies, disagreements, etc., which are outside the competencies of this AEPD, must be resolved outside of this resolution.

During the processing of this procedure, the responding entity has replied to this Agency, but does not prove to have addressed what was requested by the claimant regarding the right of access, sending the required response to their request. On the other hand, during the processing of this procedure, the responding party has stated that, as they proceeded to delete the data, it is not possible to address the right of access, as they no longer have it.

In this regard, it should be noted that when the rights of access and deletion are exercised, both rights must be addressed; it cannot be accepted that, by carrying out the deletion of personal data, under the

regulation, one seeks to leave another exercised right unanswered.

According to data protection regulations, the deletion of data as established in Article 32 of the LOPDGDD must be carried out through blocking; therefore, the deletion of personal data, having ceased to be necessary for the purpose that justified its processing, will not automatically imply its physical deletion.

This action is subject to certain conditions aimed at ensuring and guaranteeing the affected person's right to the protection of their personal data.

The blocked data will remain available to the Courts, the Public Prosecutor's Office, or other competent public administrations, particularly the data protection authorities, for the demands of possible responsibilities arising from the processing.

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treatment and for the statute of limitations of these. Therefore, the request for access must be addressed in accordance with the provisions of Article 15 of the GDPR.

It should be noted that the blocking of data consists of the identification and reservation of the same, adopting technical and organizational measures to prevent its processing, including its viewing, but it does not imply that the data that the controller provided and processed while the contractual relationship lasted cannot be made available to the affected party, in case responsibilities arise from its processing or because it is considered more protective to provide the blocked personal data for the knowledge of the interested parties.

Thus, it cannot be accepted that the response that corresponds to be given may manifest itself on the occasion of a mere administrative procedure, such as the formulation of allegations due to the present procedure, initiated precisely for not duly addressing the request in question, but rather that a response must be given to the very claim made.

The aforementioned rules do not allow the request to be overlooked as if it had not been raised, leaving it without the response that the controllers must mandatorily issue, even in the event that there are no data in the files or even in those cases where it does not meet the stipulated requirements, in which case the recipient of said request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the controller to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that a copy of the necessary communication that must be directed to the claiming party informing them about the decision made regarding the exercise of rights request is not attached, it is appropriate to uphold the claim that originated this procedure.

In view of the cited provisions and other generally applicable ones, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge B.B.B. with NIF ***NIF.1, to send to the claiming party, within ten working days following the notification of this resolution, a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions carried out as a consequence of this Resolution must be communicated to this Agency within the same period.

Non-compliance with this resolution could result in the commission of an infringement of art. 83.6 of the GDPR, classified as very serious for the purposes of limitation in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with art. 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and B.B.B.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with art. 48.2 LOPDGDD, due to vacancy of the Presidency and Deputy Presidency

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